[literally “insiders,” but meaning those closest in rank to the king], and moved freely and confidently up and down the country without let or hindrance. The country was our own, in name and right. We occupied the land, the forests, the rivers; we extracted the mineral wealth beneath the soil and all the riches of this beautiful country. We set up and operated our own government, we controlled our own arms and we organized our trade and commerce. The elders would tell tales of the wars fought by our ancestors in defense of the Fatherland, as well as the acts of valor by generals and soldiers during these epic days. . . .

The structure and organization of early African societies in this country fascinated me very much and greatly influenced the evolution of my political outlook. The land, then the main means of production, belonged to the whole tribe and there was no individual ownership whatsoever. There were no classes, no rich or poor and no exploitation of man by man. All men were free and equal and this was the foundation of government. Recognition of this general principle found expression in the constitution of the council, variously called “Imbizo” or “Pitso” or “Kgotla,” which governs the affairs of the tribe. The council was so completely democratic that all members of the tribe could participate in its deliberations. Chief and subject, warrior and medicine man, all took part and endeavored to influence its decisions. It was so weighty and influential a body that no step of any importance could ever be taken by the tribe without reference to it.

There was much in such a society that was primitive and insecure and it certainly could never measure up to the demands of the present epoch. But in such a society are contained the seeds of revolutionary democracy in which none will be held in slavery or servitude, and in which poverty, want and insecurity shall be no more. This is the history which, even today, inspires me and my colleagues in our political struggle.

I told the court how I had joined the African National Congress and how its policy of democracy and nonracialism reflected my own deepest convictions. I explained how as a lawyer I was often forced to choose between compliance with the law and accommodating my conscience.

I would say that the whole life of any thinking African in this country drives him continuously to a conflict between his conscience on the one hand and the law on the other. This is not a conflict peculiar to this country. The conflict arises for men of conscience, for men who think and who feel deeply in every country. Recently in Britain, a peer of the realm, Earl [Bertrand] Russell, probably the most respected philosopher of the Western world, was sentenced and convicted for precisely the type of activities for which I stand before you today — for following his conscience in defiance of the law, as a protest against the nuclear weapons policy